

COUNCIL REGULATION (EU) 2015/523

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COUNCIL REGULATION (EU) 2015/523

of 25 March 2015

amending Regulations (EU) No 43/2014 and (EU) 2015/104 as regards certain fishing opportunities

THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty on the Functioning of the European Union, and in particular Article 43(3) thereof,

Having regard to the proposal from the European Commission,

Whereas:

(1)

Council Regulation (EU) 2015/104 (1) does not contain limits on fishing opportunities for the stock of sea bass (*Dicentrarchus labrax*) in the north-east Atlantic.

(2)

In June 2014, the International Council for the Exploration of the Sea (ICES) released scientific advice on the stock on sea bass in the north-east Atlantic, and confirmed that this stock has been in rapid decline since 2012. Furthermore, the Scientific, Technical and Economic Committee for Fisheries (STECF) has evaluated the protection of sea bass by national measures in place and, in general, has deemed those measures ineffective. Sea bass is a late maturing and slow growing species. The fishing mortality on sea bass in the north-east Atlantic is currently four times higher than the level which would ensure maximum sustainable yield (MSY).

(3)

The Commission has adopted Implementing Regulation (EU) 2015/111 (2), based on Article 12 of Regulation (EU) No 1380/2013 of the European Parliament and of the Council (3), to alleviate a serious threat to the conservation of the sea bass (*Dicentrarchus labrax*) stock in the Celtic Sea, Channel, Irish Sea and southern North Sea.

Also recreational fisheries contribute significantly to the fishing mortality on that stock. It is therefore appropriate to establish fishing opportunities in the form of a daily limit on the number of fish that a recreational fisherman may retain. Recreational fisheries include various forms, such as fishing from a recreational vessel or fishing from shore.

(4)

In order to avoid interpretation problems, Article 7(1) and (2) of Regulation (EU) 2015/104 should be formulated so as to correspond to the wording in Article 15 of Regulation (EU) No 1380/2013.

(5)

Catch limits for sand eel in Union waters of ICES zones IIa, IIIa and IV were set at zero in Annex IA to Regulation (EU) 2015/104, pending advice from the ICES. ICES advice on the stock has been available since 23 February 2015, and it is now possible to set a total allowable catch (TAC) for sand eel in this area, distributed in seven management areas in order to avoid local depletion.

(6)

It is appropriate to provide certain inter-area flexibility for megrims that constitute the same biological stock for all Member States with a quota in the relevant areas.

(7)

Regulation (EU) 2015/104 contains an error in the TAC and quota for Northern prawn in the North Sea, where a rollover of the 2014 TAC should have been adopted. Annex IA to Regulation (EU) 2015/104 should therefore be amended accordingly.

(8)

For some stocks, fishing opportunities and conditions of access to fishery resources for vessels in Coastal State waters are established each year in the light of consultations on fisheries between the relevant Coastal States. As no agreement on quota-sharing arrangements for 2015 concerning Atlanto-Scandian herring has been reached, it is appropriate to fix an autonomous quota based on the Union share of this stock in recent years. Annex IB to Regulation (EU) 2015/104 should therefore be amended accordingly.

(9)

At its third annual meeting in 2015, the South Pacific Regional Fisheries Management Organisation (SPRFMO) fixed fishing opportunities consisting of a total allowable catch (TAC) for jack mackerel. This measure should be implemented in the law of the Union.

(10)

A footnote in Annex III to Regulation (EU) 2015/104 wrongly referred to an obsolete agreement, and should thus be corrected.

(11)

In order to accurately reflect the present gear distribution of the French and Spanish 2015 bluefin tuna fishing fleet, it is necessary to amend Annex IV of Regulation (EU) 2015/104, laying down the fishing, farming and fattening limitations for bluefin tuna.

(12)

An error needs to be corrected in the TAC table for mackerel (*Scomber scombrus*) in areas VI, VII, VIIIa, VIIIb, VIId and VIIIe; Union and international waters of Vb; international waters of IIa, XII and XIV (MAC/2CX14-).

(13)

Scientific advice received from the STECF on 2 March 2015 indicates that it is precautionary to allow a small by-catch quota for undulate ray (*Raia undulata*) in ICES areas VIa, VIb, VIIa-c, VIId, VIIe-k, VIII and IX. Annex IA to Regulation (EU) 2015/104 should therefore be amended accordingly.

(14)

Whereas in accordance with the procedure provided for in the agreement on fisheries relations with the Faroe Islands, the Union has held additional consultations on reciprocal arrangements with the Faroe Islands on fishing opportunities for Atlanto-Scandian herring and blue whiting for 2015; it is therefore appropriate to fix fishing opportunities for these stocks.

(15)

Regulation (EU) 2015/104 should therefore be amended accordingly.

(16)

According to Article 3(1) of Council Regulation (EC) No 847/96 (4), when more than 75 % of a precautionary TAC has been utilised before 31 October of the year of its application, a Member State with a quota for the stock may request an increase in the TAC. A request for a 10 % increase of the 2014 TAC for skates and rays in the North Sea has been received by the Commission. The supporting biological information, submitted with the request, has been verified and validated by experts at the Commission's Joint Research Centre.

(17)

Council Regulation (EU) No 43/2014 (5) should therefore be amended accordingly.

(18)

The catch limits provided for in Regulation (EU) 2015/104 apply from 1 January 2015. The provisions of this Regulation concerning catch limits should therefore also apply from that date. Such retroactive application is without prejudice to the principles of legal certainty and protection of legitimate expectations as the fishing opportunities concerned have not yet been exhausted. However, the new catch limit for sea bass should apply from the date of entry into force of this Regulation. Since the modification of catch limits has an influence on the economic activities and the planning of the fishing season of Union vessels, this Regulation should enter into force immediately after its publication. For reasons set out in recital 16, the provisions on higher fishing opportunities for skates and rays in the North Sea should apply with effect from 1 January 2014,

HAS ADOPTED THIS REGULATION:

Article 1

Regulation (EU) 2015/104 is amended as follows:

(1)

Article 2 is replaced by the following:

‘Article 2

Scope

1. This Regulation shall apply to the following vessels:

(a)

Union vessels;

(b)

third-country vessels in Union waters.

2. For the purpose of Article 11a, this Regulation shall also apply to recreational fisheries.’

(2)

In Article 3, the following point is added:

‘(m)

“recreational fisheries” means non-commercial fishing activities exploiting marine living aquatic resources such as for recreation, tourism or sport.’

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(3)

Article 7 is replaced by the following:

‘Article 7

Conditions for landing catches and by-catches

1. Catches of species which are subject to catch limits and which have been caught in fisheries specified in point (a) of Article 15(1) of Regulation (EU) No 1380/2013 are subject to the landing obligation, as

established in Article 15 of that Regulation (“the landing obligation”).

2. Fish subject to catch limits caught in fisheries not subject to the landing obligation shall be retained on board or landed only if:

(a)

the catches have been taken by vessels flying the flag of a Member State having a quota and that quota is not exhausted; or

(b)

the catches consist of a share in a Union quota which has not been allocated by quota among Member States, and that Union quota has not been exhausted.

3. The stocks of non-target species within safe biological limits referred to in Article 15(8) of Regulation (EU) No 1380/2013 are identified in Annex I to this Regulation for the purposes of the derogation from the obligation to count catches against the relevant quotas provided for in that Article.’

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(4)

The following Article is inserted:

‘Article 11a

Recreational sea bass fisheries in the north-east Atlantic

In recreational fisheries in ICES divisions IVb, IVc, VIIa, VIId, VIle, VIIf, VIIg, VIIh, VIIj and VIIk not more than three specimens of sea bass may be retained per person per day.’

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(5)

Annex I to Regulation (EU) 2015/104 is amended in accordance with Annex I to this Regulation.

(6)

Annex IA to Regulation (EU) 2015/104 is amended in accordance with Annex III to this Regulation.

(7)

Annex IB to Regulation (EU) 2015/104 is amended in accordance with Annex IV to this Regulation.

(8)

Annex IJ to Regulation (EU) 2015/104 is replaced by Annex V to this Regulation.

(9)

Annex III to Regulation (EU) 2015/104 is replaced by Annex VI to this Regulation.

(10)

Annex IV to Regulation (EU) 2015/104 is replaced by Annex VII to this Regulation.

(11)

Annex VIII to Regulation (EU) 2015/104 is amended in accordance with Annex VIII to this Regulation.

Article 2

Annex IA to Regulation (EU) No 43/2014 is amended in accordance with Annex II to this Regulation.

Article 3

This Regulation shall enter into force the day after its publication in the Official Journal of the European Union.

Article 1(3), (6), (7), (8), (9), (10), and (11) shall apply from 1 January 2015.

Article 2 shall apply from 1 January 2014.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 25 March 2015.